



Sun City Hilton Head Emergency Guidelines for Residential Emergency Permits and Inspections

Please be advised, the responsibility for obtaining permits and re-build of residential property is that of the homeowner.

If Beaufort and Jasper counties are declared disaster areas following a hurricane or other natural disaster, Sun City Emergency Guidelines will take effect. That means that Sun City's design and new construction guidelines will be modified so homeowners can get quicker approval to restore their homes to what they once were. All rebuilding approvals will also be subject to Beaufort and Jasper counties' permitting process.

Check the county websites for more information:

- Beaufort County: www.beaufortcountysc.gov
- Jasper County: www.jaspercountysc.gov

Plans for Architectural Review Board Guidelines

In case of a major disaster, the Modifications Committee has adopted procedures to expedite project review and approval.

- In situations where the property is going to be reconstructed virtually identical to the original home, including previously approved modifications, homeowners will have to sign and submit a Declaration Form for review.
- Residents do need approval for any new additions or changes.

In case Sun City Hilton Head is not fully accessible in the aftermath of a hurricane or natural disaster, Modifications Committee members will not be required to visit each site. Instead, members may review and approve design plans electronically sent to them at off-property locations. As always, the Modifications Committee and Community Association management intend to work closely and cooperatively with each landowner to restore a safe and secure living environment.

Beaufort and Jasper Counties Rebuilding Permitting Process

All rebuilding will be subject to Beaufort or Jasper county building codes and permitting process. The appropriate county will inspect all severely damaged properties and issue a status card depending on their damage assessment.

The approval process includes three levels of necessary actions to be taken, dependent on the amount of damage experienced and the desires of the resident when rebuilding. The county will issue a green, yellow or red Emergency Repair Permitting After Disaster placard for damage less than or greater than 50 percent.

For additional information check the county websites:

- Beaufort County: www.beaufortcountysc.gov
- Jasper County: www.jaspercountysc.gov

Level 1 – A Declaration Form (an Affidavit) signed by the property owner is required and the Reviewing Body will require no prior approval.

To remove trees or for minor repairs, homeowners must submit before and after pictures of the property and notify the Modifications Department in writing of the repairs to properly update files. These repairs include:

- **Removing trees that have fallen on or across homeowner’s property or homes, or are leaning more than 30 degrees**
- **Minor roof repairs involving less than 50 percent of the total roof and garage surface. The roofing materials must match the original color and texture**
- **Replacing broken windows with those that match the original window**
- **Replacing less than 50 percent of all exterior wall materials with matching materials and repainting with pre-approved or an identical paint color**
- **Replacing any damaged exterior doors or garage doors and repainting with a pre-approved or an identical paint color**

Approval from the Modifications Department is required for:

Level 2 – A Declaration Form and Approval by the county and SCHH authorized Reviewing Body is required.

Restoring a damaged home to its state before the storm.

In situations where the property is going to be reconstructed virtually identical to the original home, including previously approved modifications, homeowners will have to sign and submit a Declaration Form for review. The form can be found on www.SunCityHiltonHead.org. Log in and click Documents under the Community Library tile of Resident Central. Then click Publications followed by SCHH Emergency Guidelines for Residential Permits and Inspections. Repairs include:

- **Removing damaged trees from the homeowner’s property**
- **Replacing more than 50 percent of the roof or replacing any portion of the roof with a different but pre-approved color or texture roof**
- **Replacing broken windows with a similar style**
- **Replacing more than 50 percent of all exterior wall materials**
- **Repainting exterior walls or exterior doors and garage doors with a different but pre-approved color**

Modifications/Emergency Reviewing Body Approval is required for:

Level 3 – Approval by the County and SCHH Reviewing Body is required.

Repairing extensive damage or rebuilding.

In cases where the property needs to be substantially rebuilt and the property owner decides to change the design, size or exterior materials, the traditional application approval process will be required. This includes all proposed property improvements other than those listed above and changes such as raising the ground floor elevation, changing exterior wall material and color, or expanding or shrinking landscaping.

The type of property improvements requiring Level 3 action will include substantive architectural design changes involving such items as raising the ground floor elevation to conform with current standards, extensive changes in the exterior wall materials or expanding or contracting the property improvements.

See: SUN CITY HILTON HEAD ARCHITECTURAL REVIEW BOARD DECLARATION* on page four of this document.

THE REVIEWING BODY MAY BE REACHED THROUGH:

**The Modifications Department
- Email: Modifications@schhca.com
- Phone: (843) 705-4039**

THE REVIEWING BODY WILL BE PROMPTLY REVIEWING AND APPROVING, IF APPROPRIATE, THESE APPLICATIONS AS EXPEDITIOUSLY AS POSSIBLE.

The Board of Directors and its Administrative staff is dedicated to seeing that all Sun City Hilton Head property owners and their approved designated representatives are promptly and efficiently served, especially in times of an emergency, when professional assistance from architects, general contractors and other service providers will be difficult to obtain.

Please be advised that homes must be re-built to the same model and series as originally constructed by the Developer. All expansions above the baseline of the original square footage of the home as constructed by the Developer shall be limited to area limitations as outlined in the Design Guideline.

SUN CITY HILTON HEAD ARCHITECTURAL REVIEW BOARD DECLARATION*

PROPERTY ADDRESS:

LEGAL ADDRESS: _____

STREET ADDRESS: _____

CONTACT PHONE NUMBER: _____

EMAIL ADDRESS: _____

OWNER: _____

OWNER'S MAILING ADDRESS IF DIFFERENT FROM ABOVE:

STREET ADDRESS: _____

CITY: _____ **STATE:** _____ **ZIP CODE:** _____

* Damage less than 50% as determined by DESIGNATED COUNTY BUILDING CODE DEPARTMENT

I, THE UNDERSIGNED, DO HEREBY CERTIFY THAT THE ABOVE REFERENCED PROPERTY HAS BEEN DAMAGED AS A RESULT OF THE RECENTLY DECLARED DISASTER AND WILL BE REPAIRED TO THE CONDITION THAT EXISTED PRIOR TO THE CURRENT DAMAGE. NO EXTERIOR CHANGES WILL BE MADE FROM THE PREVIOUS APPROVED STRUCTURE INCLUDING ARCHITECTURAL.

DESIGN, WINDOWS AND DOORS OR OTHER FINISH MATERIALS AND COLORS WITHOUT WRITTEN APPROVAL FROM THE REVIEWING BODY.

[] BEFORE PHOTOS

[] DAMAGE TO PROPERTY PHOTOS

[] AFTER PHOTOS

Note: Required photos submitted shall be of all four elevations of the home.

Submitted by: _____

PLEASE PRINT

Signature: _____

Date: _____

LICENSE AGREEMENT

THIS LICENSE AGREEMENT (“Agreement”) is entered into by and between **DEL WEBB COMMUNITIES INC.**, an Arizona Corporation (“**Licensor**”) and _____ (“**Licensee**”). Licensee and Licensor may be collectively referred to herein as the “**Parties**”.

RECITALS

A. Licensee is the owner of Lot _____, with a mailing address of _____ (the “**Property**”) and Licensor previously constructed a home on the Property which was severely damaged or destroyed by a disaster.

B. Licensee has requested the right to use a Del Webb house plan identified as _____ (the “**Del Webb Plan**”) to reconstruct the home on the Property, and Licensor agreed to grant Licensee the right to use the Del Webb Plan, subject to the terms and conditions of this Agreement.

AGREEMENT

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein and for other good and valuable consideration, the sufficiency of which is hereby acknowledged, the Parties, intending to be bound, agree as follows:

- 1. Ownership and License.** Licensor hereby grants a single purpose, single use license to Licensee to use the Del Webb Plan, to construct a single-family residential dwelling on the Property, and only on the Property. Licensee shall not have any ownership rights to the Del Webb Plan, or any Modified Del Webb Plan (as hereinafter defined), such ownership rights to remain the sole and exclusive property of Licensor. The Del Webb Plan may be altered by Licensee (the “**Modified Del Webb Plan**”), provided the Modified Del Webb Plan remains substantially similar to exterior elevations of the existing buildings constructed by Licensor in the neighborhood in which the Property is located.
- 2. Confidential Information.** Except as required for submission to governmental authorities, persons or entities engaged in the construction of the single-family residential dwelling on the Property, or a Consultant (as hereinafter defined), Licensee shall treat the Del Webb Plan and the Modified Del Webb Plan (collectively, the “**Plans**”), as confidential and shall not (i) provide copies of the Plans to any other persons or entities; or (ii) allow any other persons or entities to use the Plans for any purpose, including, without limitation, the construction of any residential dwelling other than the single-family residential dwelling on the Property.
- 3. Consultant.** Prior to engaging any person or entity (“**Consultant**”) to prepare a Modified House Plan, Licensee shall deliver a written statement signed by the Consultant to Licensor, whereby the Consultant acknowledges and agrees that the Consultant (a) shall not own any creative or other rights in the Plans; all ownership of and rights to the Plans to be the property of Licensor; (b) will not attempt to copyright or otherwise register the Plans; (c) will not provide copies to, or allow use of the Plans, by any persons or entities, except in connection with the construction of the single-family residential dwelling on the Property; and (d) shall treat all information (including without limitation, the Plans and any other related materials and information) obtained from, or on behalf of, Licensee and/or Licensor as confidential (“**Confidential Information**”).

4. **Assignment.** The license granted under this Agreement may not be assigned by Licensee without the prior written consent of Licensor, which consent may be withheld by Licensor at its sole discretion.

5. **Amendment.** This Agreement shall not be amended or otherwise modified, except by a written instrument signed by each of the parties hereto.

6. **Events of Breach.** Licensee acknowledges that the Confidential Information of Licensor and/or created by Licensor represents the extensive skill, know-how and technology of Licensor and that any violation of this Agreement by Licensee and/or Consultant constitutes irreparable harm to Licensor that is enforceable by Licensor seeking immediate injunctive relief against Licensee and/or Consultant for such violation. In any action, including mediation, arbitration or negotiated settlement, wherein Licensor seeks enforcement of its remedies for violation of this Agreement, Licensor shall recover its attorney's fees and other expenses incurred from Licensee and/or Consultant.

7. **Indemnification.** Licensee will indemnify Licensor for any cost, liability, claim, or damage, including reasonable attorneys' fees, incurred by Licensor that is caused by or results from Licensee's use of the Plans.

8. **Heirs, Successors and Assigns.** The provisions of this Agreement shall benefit and bind the respective heirs, executors, administrators, and successors of the parties hereto.

9. **Applicable Law.** This Assignment shall be governed by and interpreted in accordance with the laws of the state of South Carolina.

10. **Counterparts.** This instrument may be executed in counterparts, each of which shall be deemed an original and both of which, together, shall be deemed to constitute one and the same document.

____ Executed this _____ day of _____, 2024.

LICENSEE:

LICENSOR:

DEL WEBB Communities Inc, an Arizona Corporation

Name: _____

By: Del Webb Communities Inc,

By: _____

Name: _____

Sun City Hilton Head — Single Use License vi Nov 1, 2010

Name: _____

Title: _____